



Superior Court of California County of San Benito

Tentative Decisions for July 29, 2026

Courtroom #1: Judge J. Omar Rodriguez

FL-22-00255 Garcia, Diego vs. Intravia, Jade

The parties reached a full agreement at mediation in response to Petitioner's Request for Order regarding custody and visitation. The hearing is taken off calendar. No appearances are necessary.

FL-23-00118 Hamilton-Barclay, Tiffany vs. Dickson, Rory

Petitioner's Request to Waive Respondent's Preliminary Declaration of Disclosures, pursuant to Family Code section 2107(b)(3) is GRANTED.

FL-24-00073 Shepherd, Wendy vs. Shepherd, Gregory K

Respondent's Request for Order to Set Aside the orders made on July 1, 2026, is DENIED. The evidence presented by Petitioner indicate that she called both the court and Respondent's Counsel. Although the notification to Respondent's Counsel was not made in writing, Local Rule 10.12 does not require written notification. Rule 10.12 merely states that written notification should be given. Petitioner provides sufficient evidence that she called counsel on Tuesday, June 30, 2026, at 3:51 p.m. using the telephone number provided by Respondent's counsel, (408) 715-0900, which is the same telephone number used in counsel's caption in the current motion. To add to Respondent's credibility, she has Respondent's Counsel's contact information as "Paredes – Jerks Attorney", which does not portray Petitioner in a favorable manner, but indicates the screenshot provided has not been tampered.

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****Please contact Judicial Courtroom Assistant, Maria Pantoja, at
(831) 636-4057 x129 or mpantoja@sanbenitocourt.org with
any objections or concerns.**

Consequently, there is sufficient evidence to support Petitioner's contention that she complied with the rules pertaining to requesting a hearing to contest the tentative ruling, Respondent failed to attend the hearing and orders were made following the hearing. There is no good cause to set aside the order.

As to Respondent's Motion to enforce pursuant to Code of Civil Procedure section 664.6, before a court may enter judgment, the parties must reach a mutual accord on all material terms of the settlement. (*Weddington Productions, Inc. v. Flick* (1998) 60 Cal. App. 4th 793, 797.) If there is no meeting of the minds on the material terms, no contract formation has occurred, and there is no settlement agreement to enforce under. (*Ibid.*) Here, the proposed judgment does include additional language that was not included in the minute order, which Petitioner is objecting to. For example, the language added includes references to encumbrances associated with the properties at issue as well as a reference to Internal Revenue Code section 1041.

FL-25-00114 Gorena, Vanessa O vs. Zafra, Arnulfo F

Petitioner's Request for Order filed June 29, 2026, is GRANTED. The parties are ordered to communicate using the Our Family Wizard App. Each party shall pay their own costs.

FL-26-00066 Barriga Estrada, Jose Luis vs. Lopez Zambrano, Nancy E

Petitioner's Request to Waive Respondent's Preliminary Declaration of Disclosures, pursuant to Family Code section 2107(b)(3) is GRANTED.

FL-26-00118 Munoz, Albert Anthony vs. Loreda, Victoria

The hearing on Petitioner's June 2, 2026, Request for Order is continued to August 19, 2026, at 8:30 a.m. The parties are ordered to child custody mediation on August 12, 2026, at 9:00 a.m. at the San Benito County Superior Court's Self-Help Center. It appears that the July 16, 2026, mediation did not occur as previously scheduled.